

STATE OF NEW YORK

3676--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 29, 2025

Introduced by M. of A. HYNDMAN, SANTABARBARA, TAYLOR, STECK -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing the "Sickle Cell Treatment Act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Sickle Cell Treatment Act".

3 § 2. The public health law is amended by adding a new section 2807-bb
4 to read as follows:

5 § 2807-bb. Sickle cell centers for excellence and outpatient treatment
6 centers. 1. Centers for sickle cell care excellence. The commissioner
7 shall designate five general hospitals or hospices with a minimum of two
8 centers north of Putnam and Orange counties under article forty of this
9 chapter, upon successful application, as centers for sickle cell care
10 excellence. The designations shall be made through an application
11 designed by the department, and based on service, staffing and other
12 criteria as developed by the commissioner. The centers of excellence
13 shall provide specialized sickle cell disease care, treatment, pallia-
14 tive care, education and related services and shall conduct specialized
15 research into the care, treatment and management of sickle cell disease.
16 Designation as a center for sickle cell care excellence shall not enti-
17 tle a center to enhanced reimbursement, but may be utilized in outreach
18 and other promotional activities. Each center for sickle cell care
19 excellence shall affiliate and cooperate with major centers of higher
20 learning, including medical colleges, and life science research insti-
21 tutes in the state. The state university shall enter into appropriate
22 legal agreements to enable this cooperation. Each center for sickle cell

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01146-06-5

1 care excellence shall receive five hundred thousand dollars per year
2 from the department, from amounts appropriated for that purpose, to be
3 used on sickle cell disease research.

4 2. Outpatient treatment centers. The commissioner shall designate ten
5 hospitals, distributed based on sickle cell patient population concen-
6 trations, as sickle cell outpatient treatment centers which shall
7 provide patients treatment for sickle cell disease as an outpatient.
8 Each sickle cell outpatient treatment center shall receive two hundred
9 fifty thousand dollars per year from the department, from amounts appro-
10 priated for that purpose, to be used to ensure the proper management and
11 equipping of the centers to care for sickle cell patients.

12 § 3. Subdivision 8 of section 3331 of the public health law, as added
13 by section 7-a of part D of chapter 57 of the laws of 2018, is amended
14 to read as follows:

15 8. No opioids shall be prescribed to a patient initiating or being
16 maintained on opioid treatment for pain which has lasted more than three
17 months or past the time of normal tissue healing, unless the medical
18 record contains a written treatment plan that follows generally accepted
19 national professional or governmental guidelines. The requirements of
20 this ~~paragraph~~ subdivision shall not apply in the case of patients who
21 are being treated for sickle cell disease or cancer that is not in
22 remission, who are in hospice or other end-of-life care, or whose pain
23 is being treated as part of palliative care practices.

24 § 4. This act shall take effect immediately.